

5	Rezai vs. Monfared	Plaintiffs Ramin Monfared and Negin Almassi's ("Plaintiffs") Motion for Entry of Judgment against defendants Zara Rezai a/k/a Zahra Rezai, Andy Andalibian, Greg M Tonkinson, individually and as alleged successor or Trustee of the Coast Highway Ramfared trust, dated November 28, 2022, Alliance Construction Co., and New Dawn Jenkins LLC ("Defendants" together) is GRANTED. The parties entered into a valid and binding settlement agreement which required Defendants to sell real property and put \$450,000 into escrow for payments to Plaintiffs. (Jafari Decl. ¶¶ 2-5, Ex. 1.) Defendants violated the terms of the agreement and failed to take the actions required. Defendants were notified of the default, but refused or failed to cure it. Defendants were also served notice of the motion and hearing. Pursuant to Civ. Proc. Code § 664.6 and the terms of the settlement agreement between the parties, the court will grant the motion and enter judgment in the total amount of \$450,000.00, plus 10% annual interest from the date entry of judgment is made. While the agreement also permits recovery of attorney fees and costs, Plaintiffs will need to seek those under a separate motion as there was no evidence of attorney fees and costs in the present motion. Plaintiffs are also directed to file a proposed judgment for the court to review and sign. Plaintiffs to give notice.
6	Gibas vs. Barua	Before the court is an unopposed motion filed by attorneys Rye Mhtar of Buffington Law Firm, P.C. ("Attorneys"), requesting to be relieved as counsel of record for plaintiffs Donald Joseph Gibas and Billie Jo Gibas, Both in Their Individual Capacity and As Trustees of the Gibas Family Revocable Living Trust Dated July 5, ("Clients" together). The motion is GRANTED. Attorneys have complied with the requirements of California Rule of Court 3.1362, and filed and served forms MC-051, MC-052, and MC-053 on Clients and on the defendant. The court finds Attorneys have provided a valid and sufficient reason for requesting to be relieved as counsel for Clients. As such, the court GRANTS the motion. The order relieving counsel shall not be effective until Attorneys file with the court a proof of service showing the signed order granting the motion has been served on Clients. Until such time, Attorneys shall remain counsel of record. Case Management Conference is CONTINUED to October 9, 2026, at 9:30 a.m. Attorneys are ordered to give notice of this ruling.
7	Schutzman v. Stern	Before the Court is a special motion to strike (anti-SLAPP) brought by defendants Oren Stern and Amit Louzon as to the first cause of

action for Defamation in the complaint filed by Plaintiffs Scott Schutzman and Law Offices of Scott E. Schutzman.

The motion by Oren Stern is **GRANTED**, as set forth herein.

Because the first cause of action for Defamation is not asserted against Amit Louzon, the motion is MOOT as to Louzon.

The within action arises from a January 28, 2025 Google review posted by Stern in which he said the following about Scott Schutzman: "Absolutely the most unprofessional lawyer I've ever dealt with. Completely unreliable, unresponsive, and lacking basic professionalism. Do yourself a huge favor—save your time, money, and sanity by finding someone else. Avoid at all costs!" (See Exhibit A to the Complaint)

Code of Civil Procedure section 425.16 permits a special motion to strike Strategic Litigation Against Public Participation ("SLAPP") lawsuits. A SLAPP suit is "a meritless suit filed primarily to chill the defendant's exercise of First Amendment rights." (Finton Construction, Inc. v. Bidna & Keys, APLC (2015) 238 Cal.App.4th 200, 208.) The purpose of the anti-SLAPP law is "not [to] insulate defendants from any liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, meritless claims arising from protected activity." (Baral v. Schnitt (2016) 1 Cal.5th 376, 384.)

The trial court engages in a two-step process to determine whether a special motion to strike should be granted. (CCP §425.16(b)(1); Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1065.) First, "the moving defendant bears the burden of establishing that the challenged allegations or claims 'aris[e] from' protected activity in which the defendant has engaged." (Bonni v. St. Joseph Health System, supra, 11 Cal.5th at p. 1065 [quoting Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1061].)

"A claim arises from protected activity when that activity underlies or forms the basis for the claim." (Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1062.) "Critically, 'the defendant's act underlying the plaintiff's cause of action must itself have been an act in furtherance of the right of petition or free speech.' [Citations.]" (Id. at pp. 1062-1063.) Here, the Defamation cause of action is based on the Google review.

"Web sites accessible to the public ... are public forums for purposes of the anti-SLAPP statute." (Barrett v. Rosenthal (2006) 40 Cal.4th 33, 41, fn. 4; see also, Demetriades v. Yelp, Inc. (2014) 228 Cal.App.4th 294, 310 - "[. . .] Yelp's Web site is a public forum and contains matters of public concern in its reviews of restaurants and other businesses. . .")

"[A]lthough 'not every Web site post involves a public issue' (Citation), consumer information that goes beyond a particular interaction between the parties and implicates matters of public

concern that can affect many people is generally deemed to involve an issue of public interest for purposes of the anti-SLAPP statute.” (Wong v. Jing (2010) 189 Cal.App.4th 1354, 1366) When determining whether the issue is a matter of public interest, the court construes the statute broadly. (Nygrd, Inc. v. Uusi-Kerttula (2008) 159 Cal.App.4th 1027, 1039)

Here, the Google review was a warning by Stern to the public not to use Schutzman as an attorney. Selecting an attorney is not always an easy task. Providing this consumer protection information affects a large number of persons and “generally is viewed as information concerning a matter of public interest.” (Wilbanks v. Wolk (2004) 121 Cal. App. 4th 883, 898.) Indeed, Plaintiff’s complaint alleges that “[t]he Google review was seen and read . . . by thousands of potential clients.” Complaint at ¶ 13.

Construing “public interest” broadly, the Court finds the Google review addresses a matter of public interest and that Stern has met his burden under prong one.

Once Defendant has met her burden of showing the causes of action arise from protected activity, Plaintiffs have the burden of establishing a probability of success on the merits with respect to those claims. (City of Cotati v. Cashman (2002) 29 Cal.4th 69, 73)

Here, the Google Review stated that Schutzman was unprofessional, unreliable and unresponsive. “The ultimate question is whether a reasonable trier of fact could conclude that the published statements imply a provably false factual assertion. (Citation) As we found in Weller v. American Broadcasting Companies, Inc. (1991) 232 Cal.App.3d 991, the court ‘must determine whether the statements that form the basis of a defamation claim: (1) expressly or impliedly assert a fact that is susceptible to being proved false; and (2) whether the language and tenor is such that it cannot ‘reasonably [be] interpreted as stating actual facts.’ ” (Citation)” (Wilbanks v. Wolk (2004) 121 Cal. App. 4th 883, 902)

In the opposition, plaintiff has failed to show the three statements (unprofessional, unreliable and unresponsive) are provably false. The statements express Stern’s opinion. Stern expresses his opinion in the context of those attorneys he has “dealt with.” It is not uncommon for people to have different expectations for their attorneys. For example, a person might consider an attorney who takes five days to respond to an email to be unresponsive and unreliable and therefore unprofessional. On the other hand, a different person might find such to be a prompt and expected timeframe for response by a busy lawyer.

Schutzman argues that “Stern received all the remedy he could possibly receive without alleging alter ego or doing extensive discovery.” (Opp. at 6:15-16) However, Stern did not say in the review he did not get the best available result. Instead, Stern expressed his opinion that his interactions with Schutzman were unprofessional, unreliable and unresponsive.